

Justice of Potential

Between Potential and Ideal - split chapter

Justice of Potential

Truth, evidence, guilt, and repair that is not revenge.

The problem law poses to the theory

Law asks whether harm can be turned into form without the form becoming further violence. Law is necessary because without form, repair may become revenge. But when form forgets justice, it becomes ordered power.

The symptoms are cases, evidence, convictions, acquittals, plea deals, punishment, rehabilitation, delays, costs, access gaps, and legal AI. The root diagnosis: law fails when the form meant to protect against revenge replaces justice, or when pain becomes permission to erase a person. Harm-evidence-response map

Institutional justice = clarified truth × evidence × due process × proportionality × possibility of repair × access / arbitrary power × revenge × bias × systemic blindness × inequality × automation.

The map asks: what is the harm? What can be known? What is merely alleged? Who bears the pain? Who holds the power? What does procedure allow and what does it erase?

Truth can exist beyond a system's evidentiary horizon. Law is born because it must act without pretending that everything true is accessible to it.

Legal AI can assist search and summary, but it is not judge or conscience. When risk scores or summaries hide assumptions behind the appearance of precision, data impersonates judgment. What law returns to the theory

Law clarifies form: form is necessary to prevent revenge, but when form forgets justice it becomes ordered power. It also clarifies the difference between truth and access to truth.